BEFORE THE
STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

In the Matter of

Consolidated Edison Company of New York, Inc.
Cases 25-E-0072 & 25-G-0073
Electric and Gas Rates

June 24, 2025

Prepared Rebuttal Testimony of:

The Office of Assemblymember
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Introduction and Overview

Q: Are you the same Chris Burdick who presented direct testimony in these proceedings?

A: Yes.

Q: What is the purpose of your rebuttal testimony in these proceedings?

A: The purpose of this rebuttal testimony is to oppose the recommendations in the May 2025 testimony of the DPS Staff Accounting Panel pertaining to the suggested 9.30% ROE and 48% equity ratio.

Q: Are you sponsoring any exhibits in support of this rebuttal testimony?

A: No.

DPS Staff Recommended ROE is Too High

Q: Do you believe that the DPS staff recommended ROE is too high?

A: Yes.

Q: What is the basis for this regarding the recommended ROE?

A: The recommendation of an ROE of 9.30% overstates market risk, interest rate trends, the Company's access to capital, and its consistently strong earnings reflected in it being considered a "Dividend King," having raised its dividend for 50 consecutive years and strong investor confidence. As of May 2025, the 10-year Treasury yield has

remained close to 3.9%. Further, as noted in my prior testimony, the Company has demonstrated ample access to capital, evidenced by recent multibillion-dollar issuances and a consistent record of strong earnings.

Q: What do you consider a reasonable ROE?

A: I respectfully assert that a more reasonable ROE would be 8.80% as it would strike a fair balance between the needs of the company for fiscal stability, while reducing the impact on ratepayers who are already highly burdened under the company's existing rates.

Q: Are there recent decisions of the commission that align with your opinion?

A: Yes. The following commission decisions were made in similar market conditions as present in the current rate cases, and achieved a balance between utility needs and ratepayer impact. The authorized ROE in Con Edison Electric Rate Case 19-E-0065, 2020 was 8.80%; in the Central Hudson Gas & Electric Gas Rate Cases 20-E-0428 and 20-G-0249, 2021 was 8.80%; Corning Natural Gas Corporation Case Nos. 20-G-0101 & 16-G-0204, 2021 was 8.80%; KeySpan Gas East Corp. (National Grid – Brooklyn/Long Island) Case Nos. 23-G-0225 & 23-G-0226, 2023 (Direct Testimonies filed in connection with this proceeding) was 8.80%; Energy East

(RG&E / NYSEG), Case Nos. 20-G-0131 (Gas) and 20-E-0132 (Electric) filed by Energy East utilities, 2020 was 8.80%.

DPS Staff Recommended Equity Ratio is Too High

Q. Do you believe that the DPS staff recommended equity ratio of 48% is too high?

A: Yes.

Q: What is the basis for this?

A: The 48% common equity ratio is higher than necessary to maintain the company's creditworthiness and financial stability. As discussed hereinabove, the company has significant and robust access to capital, very strong investor confidence, strong earnings growth, and a strong fiscal position. The company's actual equity ratio has historically hovered around 46% to 48%. As such, the recommendations would not strike a reasonable balance between a fair and equitable return for investors, on the one hand, and affordability, fairness and ratepayer equity and the public interest, on the other hand.

Q: What do you believe is an appropriate equity ratio?

A: A 47% equity ratio would strike a fairer balance between the needs of the company for fiscal stability and financial strength and ratepayer impact, avoiding unnecessary cost burdens on ratepayers. This would avoid the top end of the historical equity range.

Conclusion of Testimony

Q: Does this conclude your testimony?

A: Yes.